

CV-25-012288 VEGA, GLORIA vs US RENAL CARE INC – a) Defendant U.S. Renal Care, Inc.’s Demurrer to Plaintiffs’ First Amended Complaint – SUSTAINED with leave to amend; b) Defendant U.S. Renal Care, Inc.’s Motion to Strike Portions of Plaintiffs’ First Amended Complaint – GRANTED with leave to amend.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: a) Preliminarily, the demurrer fails to comply with Code of Civil Procedure section 430.41, which requires that the parties meet and confer “in person, by telephone, or by video conference.” Here, the effort to meet and confer was insufficient. The only attempt to comply with Code of Civil Procedure section 430.41 was the delivery of a written communication sent to Plaintiff via email on May 19, 2026. Instead of responding with a time to meet and confer, Plaintiff responded via email merely requesting that the hearing be set after July 3, 2026. (Declaration of Lyly K. Tran, ¶¶ 2–3.) A communication sent by email is insufficient. The Legislature’s specification of the authorized methods for meeting and conferring reflects its belief that more personal forms of communication—beyond written exchanges—are better suited to resolving disputes informally, thereby reducing the burden on both the courts and the parties. The Court nonetheless reaches the merits. In this case, Defendant, a dialysis provider, is alleged to have failed to take precautions for Plaintiff, who was at risk for a fall, did fall, and suffered injury. One threshold issue is whether the episodic nature of the dialysis treatment is sufficient under Welfare and Institutions Code section 15600 et seq. is the type of custodial care envisioned by the code. Plaintiff asserts that because Defendant took steps to avoid the fall risk, it was assessing Plaintiff’s basic needs. But under *Winn v. Pioneer Medical Group, Inc.* (2016) 63 Cal.4th 148, there must be a robust caretaking component. Here, the alleged caretaking appears to be solely the fall risk abatement efforts. As Defendant observes, in *Oroville Hospital v. Superior Court* (2022) 74 Cal.App.5th 382, (a case that had reached the summary judgment stage) even in-home wound care is insufficient caretaking to reach the Elder Abuse and Neglect Act’s ambit. Defendant also raises insufficient evidence of a managing agent’s ratification. At the pleading stage, Plaintiff is necessarily disadvantaged by her inferior knowledge. Nonetheless, Plaintiff’s citation to *Allied Mutual Ins. Co. v. Webb* (2001) 91 Cal.App.4th 1190 is unhelpful; in that case ratification was found not to have happened and not to be possible as the wrongful event had already occurred. Plaintiff’s assertions on ratification are speculative. Leave to Amend The Court is skeptical that the defects can be repaired. Nonetheless, leave to amend is generally granted and it is not clear-cut that leave to amend is not possible. Any amended complaint shall be filed within 15 days. b) The Motion to Strike is GRANTED with leave to amend for largely the same reasons as above. Further, allegations of unfair or deceptive practices are insufficient.

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